

Minerva Mills Ltd. v. Union of India

Citation: (1980) 3 SCC 625 | Court: Supreme Court | Year: 1980

Coram: 5-Judge Constitution Bench (Y.V. Chandrachud CJI) | Subject: Constitutional Law | Provisions: Articles 368, 31C, Part III & Part IV

I. EXECUTIVE SUMMARY & CASE GLIMPSE

The Indian Constitution is founded on the bedrock of the balance between Fundamental Rights (Part III) and Directive Principles (Part IV). To give absolute primacy to one over the other is to destroy the harmony of the Constitution, which is an essential feature of the Basic Structure.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Articles 368, 31C, Part III & Part IV. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Articles 368, 31C, Part III & Part IV.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Struck down clauses (4) and (5) of Article 368 inserted by the 42nd Amendment, which claimed unlimited amending power for Parliament. A limited amending power is one of the basic features of the Indian Constitution, and Parliament cannot enlarge its own power to destroy limitations.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Struck down 42nd Amendment clauses granting unlimited amending power under Art 368.
- â€ Established the harmonious balance between Part III and Part IV as Basic Structure.
- â€ Preserved the judicial review of constitutional amendments.